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Case Number: 25SMCV00959 Hearing Date: July 1, 2026 Dept: M

CASE NAME: Medoff v. LA

Housing Outreach LLC, et al.

CASE NO.: 25SMCV00959

MOTION: Special

Motion to Strike

HEARING DATE: 7/1/2026

Legal

Standard

Code of Civil Procedure ("CCP")

section 425.16 permits the Court to strike causes of action arising from an act in furtherance of the defendant's right of free speech or petition, unless the plaintiff establishes that there is a probability that the plaintiff will prevail on the claim. "The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation." (Baral v. Schnitt (2016) 1 Cal.5th 376, 393.)

"The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (Id. at 384.)

"Resolution of an anti-SLAPP motion

involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the defendant makes

the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success.” (Baral, supra, 1 Cal.5th at 384, citation omitted.) The California Supreme Court has “described this second step as a ‘summary-judgment-like procedure.’ The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law. ‘[C]laims with the requisite minimal merit may proceed.’” (Id. at 384-385 [citations omitted].)

A moving party must move to strike under this section within 60 days of service of the complaint. (CCP §425.16(f).)

CCP section 425.16(e) defines protected acts as the following: 1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; 2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; 3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest; or 4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

“[T]he critical consideration is whether the cause of action is based on the defendant’s protected free speech or petitioning activity.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 89.) A claim is subject to an anti-SLAPP motion only if the conduct constituting the protected activity “itself is the wrong complained of.” (Park v. Board of Trustees of Calif. State Univ. (2017) 2 Cal.5th 1057, 1060.) In other words, “[a] claim arises from protected activity when that activity underlies or forms the basis for the claim.” (Id. at 1062.) “‘[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.’” (Navellier, supra, 29 Cal.4th at 89.) “Instead, the focus is on determining what ‘the defendant’s activity [is] that

gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.” (Id. at 92.) “The only means specified in section 425.16 by which a moving defendant can satisfy that [‘arising from’] requirement is to demonstrate that the defendant’s conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)...” (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 66.) “In short, in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by defendant supply those elements and consequently form the basis for liability.” (Id.)

EVIDENTIARY

OBJECTIONS

Defendants’ request for judicial notice is GRANTED. (Evid. Code § 452(d).)

ANALYSIS

Defendants LA Housing Outreach, LLC, Jonathan Sedaghat, and Starkwood, Inc., move to strike each cause of action of the Complaint. Defendants argue that their activity in filing an underlying action and obtaining a judgment against Medoff is protected activity covered by the anti-SLAPP statute. Defendants further argue that the action is meritless because the gravamen of the action has been litigated previously and decided against Plaintiff.

Initially, the Court in Department 205 held that Defendants did not meet their burden on the initial prong. The court found that the causes of action were “mixed” claims involving both protected and unprotected activity. (Baral, supra, 1 Cal.5th at 396.) The court noted that “[i]f a cause of action contains multiple claims and a moving party fails to identify how the speech or conduct underlying some of those claims is protected activity, it will not carry its first-step burden as to those claims.” (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1011). “The nonmovant is not faced with the burden of having to make the moving party’s case for it.” (Id.) The Court concurs that Defendants failed to identify specific speech or conduct which underlies any particular claim in the Complaint in the moving papers.

Defendants have since filed a supplemental briefing consistent with the court's leave, identifying several allegations and a cause of action subject to their motion. Therefore, the Court examines whether Defendants appropriately identify allegations of protected conduct supporting each cause of action.

As to the first cause of action, Defendants assert that "LARSO, including, specifically, Section 151.09 was within LA Housing's right to petition." "LARSO" not a cognizable protected activity. Thus, the burden is not met as to this cause of action.

As to the second cause of action, Defendants identify the allegation that "Defendants [sic] filed eviction against Plaintiff illegally in September 2023, and therefore violated the Los Angeles Rent Stabilization Ordinance (LAMC § 151.09)." (Compl., ¶ 48.) Litigation-related activities, such as the filing of a lawsuit or unlawful detainer action, reflect the exercise of a person's constitutionally guaranteed right to petition the government for grievances. (*Navellier v. Sletten* (2002) 29 Cal.4th 84, 90; see *Feldman v. 1100 Park Lane Assocs.* (2008) 160 Cal.App.4th 1467, 1480 [finding that an unlawful detainer action, service of notice to quit and threats to evict tenants constitute protected activities].) Thus, that portion of the cause of action is subject to anti-SLAPP protections.

As to the sixth cause of action, Defendants identify paragraph 90, which states "Another such example of negligence is that Defendants and/or agents of Defendants lawfully refused Plaintiff's rent and attempted to evict Plaintiff despite Plaintiff having legitimate tenancy rights as is specified in the Los Angeles Tenant Anti-Harassment Ordinance and LARSO." Since protected activity underlies this portion of the negligence claim, that allegation supporting the negligence claim is subject to anti-SLAPP protections.

Defendants argue that paragraphs 124 and 125 of the Complaint claims the premises were the subject of LARSO. Again, a property being subject to LARSO is not protected petitioning activity. These identified allegations are not protected. Defendants claim that at paragraph 134, Medoff was allegedly harmed by being "unlawfully evicted." Indeed, this is protected activity. Defendants also identify the twelfth cause of action for retaliatory eviction, which is also premised on protected

activity.

Otherwise, the gravamen of the remaining causes of action do not arise from Defendants' eviction notices and filings. Alternatively, Defendants do not meet their burden to show which allegations of protected activity supply an element of the respective cause of action. For instance, Defendants do not demonstrate how certain allegations, such as portions of ¶¶ 36 (re: threatening and taking action to evict Plaintiff), 64, 84, 94, 103-104, 109-110, 114, 118, 129, and 133, supply an element of the respective cause of action.

Accordingly, Defendants meet their burden on the first prong as to paragraphs 48, 90, 134, and the entirety of the twelfth cause of action (¶¶ 136-145). Plaintiff has the burden to substantiate these allegations.

Second Prong – Res Judicata

Defendants

demonstrate that, as a matter of law, the claims underlying these identified allegations fail due to the application of res judicata principles. The doctrine of res judicata generally precludes parties from relitigating a cause of action determined with finality in a prior proceeding. (Smith v. ExxonMobil Oil Corp. (2007) 153 Cal.App.4th 1407, 1413-14; Wright v. Ripley (1998) 65 Cal.App.4th 1189, 1193.) The doctrine has two aspects: claim preclusion, which applies to a previously litigated cause of action, and issue preclusion, which applies to issues necessarily decided in a prior action. (Vandenberg v. Superior Court (1999) 21 Cal.4th 815, 828.) “[R]es judicata does not merely bar relitigation of identical claims or causes of action. Instead, in its collateral estoppel aspect, the doctrine may also preclude a party to prior litigation from redisputing issues therein decided against him, even when those issues bear on different claims raised in a later case. Moreover, because the estoppel need not be mutual, it is not necessary that the earlier and later proceedings involve the identical parties or their privies. Only the party against whom the doctrine is invoked must be bound by the prior proceeding. [Citations.]” (Ibid.) Issue preclusion will apply if the party to be bound agreed expressly or impliedly to submit an issue to prior adjudication and had a full and fair opportunity to litigate under circumstances affording due process protections. (Ayala v. Dawson, (2017) 13 Cal.App.5th 1319, 1327.)

Defendants demonstrate that the above allegations attempt to re-litigate already decided issues in the related eviction action, LA Housing Outreach v. Medoff (LASC Case No. 23SMCV04542). That action broaches the same issues presented in the identified allegations. In the underlying action, when Medoff refused to vacate her unit, LA Housing filed an action against her for breach of written lease, ejectment, and fraud, based on its position that Medoff was an unapproved subtenant. The Court found for LA Housing and against Medoff. Plaintiff argues that the issues of Defendants' capability as a landlord and compliance with applicable laws were not appropriate to be litigated in the prior action. However, the preclusive effect of res judicata applies to affirmative defenses that would preclude removal of the tenant in an eviction action. (Needelman v. DeWolf Realty Co., (2015) 239 Cal.App.4th 750, 759.) The alleged LARSO violations and retaliatory eviction would have been such a defense to the underlying proceeding and could have been fairly raised. (Civ. Code § 1942.5; Kriz v. Taylor (1979) 92 Cal.App.3d 302, 312-314; see Barela v. Superior Court (1981) 30 Cal.3d 244, 249-250 [re: common law retaliatory eviction defense]; see also CCP § 1174.2 & Green v. Superior Court (1974) 10 Cal.3d 616, 631 [breach of the warranty of habitability is an affirmative defense to an unlawful detainer].) Further, consent is a defense to trespass/ejectment. (Cobb v. City of Stockton (2011) 192 Cal.App.4th 65, 72 [a trespass requires that the entry be without permission]; Baugh v. Consumers Associates, Limited (1966) 241 Cal.App.2d 672, 675 [ejectment requires proof of ownership disclosing a right to possession].) Plaintiff, in fact, attempted to raise this as a defense but was excluded from doing so pursuant to a motion in limine due her own failure to raise the defense in the answer. Plaintiff had a full opportunity to litigate the issue, and did so at the trial court level and on appeal.

The Court continued the hearing on this motion because judgment in the eviction action was not yet final. CCP section 1049 provides that "[a]n action is deemed to be pending from the time of its commencement until its final determination upon appeal, or until the time for appeal has passed, unless the judgment is sooner satisfied". The remittitur in the underlying action was issued on June 10, 2026. (RJN Exh. 5.) As such, res judicata provides a complete defense to the subject allegations.

Accordingly, the motion is GRANTED in part. The court strikes paragraphs 48, 90, and 134, and the twelfth cause of action.